

litigation had begun, it was conclusively determined that the malt liquor in fact had an alcohol content not exceeding 3.2% by weight.²³ Testimony at trial put the alcohol content of the punch served at 0.91%.²⁴

Given the fact that there *was* evidence supporting the charge against respondents, the contrary judgment of the Court of Appeals is improvident. It is not the role of the federal courts to set aside decisions of school administrators which the court may view as lacking a basis in wisdom or compassion. Public high school students do have substantive and procedural rights while at school. See *Tinker v. Des Moines Independent Community School District*, 393 U. S. 503 (1969); *West Virginia State Board of Education v. Barnette*, 319 U. S. 624 (1943); *Goss v. Lopez*, 419 U. S. 565 (1975). But § 1983 does not extend the right to relitigate in federal court evidentiary questions arising in school disciplinary proceedings or the proper construction of school regulations. The system of public education that has evolved in this Nation relies necessarily upon the discretion and judgment of school administrators and school board members, and § 1983 was not intended to be a vehicle for federal-court corrections of errors in the exercise of that discretion which do not rise to the level of violations of specific constitutional guarantees. See *Epperson v. Arkansas*, 393 U. S. 97, 104 (1968); *Tinker, supra*, at 507.

IV

Respondents' complaint alleged that their procedural due process rights were violated by the action taken by petitioners. App. 9. The District Court did not discuss

²³ This percentage content was established through the deposition of an officer of the company that produces "Right Time" malt liquor. App. 93-94.

²⁴ Tr. 205 (testimony of Dr. W. F. Turner).